

FORM No. 40

**MAGISTRATE'S OR JUDGE'S WARRANT OF COMMITMENT OF WITNESS REFUSING TO ANSWER OR
TO PRODUCE DOCUMENT**

(See section 388)

To.....

(*name and designation of officer of Court*)

WHEREAS.....(*name and description*), being summoned (*or* brought before this Court) as a witness and this day required to give evidence on an inquiry into an alleged offence, refused to answer a certain question (*or* certain questions) put to him touching the said alleged offence, and duly recorded, or having been called upon to produce any document has refused to produce such document, without alleging any just excuse for such refusal, and for his refusal has been ordered to be detained in custody for.....(*term of detention adjudged*);

This is to authorise and require you to take the said.....(*name*) into custody, and him safely to keep in your custody for the period of.....days, unless in the meantime he shall consent to be examined and to answer the questions asked of him, or to produce the document called for from him, and on the last of the said days, or forthwith on such consent being known, to bring him before this Court to be dealt with according to law, returning this warrant with an endorsement certifying the manner of its execution.

Dated, this..... day of....., 20

(*Seal of the Court*)

(*Signature*)
